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IN THE

Supreme Court of the United States

OCTOBER TERM, 1998

JONATHAN W. MARSHALL, *et al.*,

Petitioners,

vs.

RONALD SUSTER, *et al.*,

Respondents.

ON PETITION FOR WRIT OF CERTIORARI
TO THE UNITED STATES COURT OF APPEALS
FOR THE SIXTH CIRCUIT

BRIEF IN OPPOSITION FOR RESPONDENTS RONALD SUSTER & PATRICIA CLEARY

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QUESTIONS PRESENTED FOR REVIEW

I. Whether the Sixth Circuit correctly reviewed the law as it existed at the time the lawsuit was filed.

II. Whether the Sixth Circuit correctly held that the District Court did not abuse its discretion in granting Respondents a preliminary injunction enjoining the judicial campaign spending limits imposed by the former Cannon VII of the Code of Judicial Conduct of the Ohio Supreme Court on the basis of this Court's ruling in *Buckley v. Valeo* which prohibits quantitative limits on political speech.

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STATEMENT OF JURISDICTION

Respondents do not dispute this Court's jurisdiction to review the judgment pursuant to 28 U.S.C. § 1254(1).

STATEMENT OF THE CASE

The Ohio State Bar Association, in its Amicus Brief in the Sixth Circuit Court of Appeals filed in support of the Respondents, cogently set forth the rationale for striking down judicial campaign spending limits as unconstitutional:

> If we are to continue to elect judges in Ohio, then a truly informed electorate is critical to maintaining public confidence in the judiciary.

OSBA Sixth Circuit Court of Appeals Brief, pp. 2-3. In order for a candidate to inform an electorate, money is required: money to mail flyers to voters, money for television and radio advertisements, money to print campaign literature.

Spending limits on judicial campaigns affect a candidate's ability to speak to voters. They limit the *quantity* of political speech. Such quantitative limits on political speech are unconstitutional. This is the simple holding of *Buckley v. Valeo*, 424 U.S. 1 (1976). An analogy suggested by this Court in *Buckley*, 424 U.S. 1 at n.18, tersely explains why spending limits *fail* to pass constitutional muster:

> Being free to engage in unlimited political expression subject to a ceiling on expenditures is like being free to drive an automobile as far and as often as one desires on a single tank of gasoline.

The simplicity of this analysis was *not* lost on the District Court, it was *not* lost on the Sixth Circuit Court of Appeals; however, it certainly is lost on the Petitioners.

In order to justify their currently politically popular view that spending limits do not fall within the ambit of *Buckley*, the Petitioners must convince this Court that a person who runs for judge and speaks to voters about his or her qualifications for office somehow is *not* engaging in a political act worthy of First Amendment protection. The District Court in granting Appellees' a preliminary injunction did not buy this argument, the Sixth Circuit Court of Appeals did not by this argument and neither should this Court.

Respondent Ronald Suster is an attorney at law licensed to practice before all courts in the State of Ohio and is presently serving a term as Judge on the Cuyahoga County Court of Common Pleas, which term ends in January 2002. Prior to being appointed to the judiciary in October, 1995, Suster served from 1981 to 1995 as an elected member of the Ohio House of Representatives from Cuyahoga County. Suster won the primary election on March 19, 1996 and stood for election for judge of the Cuyahoga County Court of Common Pleas in the general election held November 5, 1996.

Respondent Patricia Cleary is an attorney at law licensed to practice before all courts in the State of Ohio and is presently serving as Judge on the Cuyahoga County Court of Common Pleas, which term ends December 31, 2000. She is also a registered voter in Cuyahoga County and she, like Appellee Suster, wished to receive information about judicial candidates running for the common pleas bench in Cuyahoga County.

Petitioner Jonathan W. Marshall ("Marshall") is the Secretary of the Board of Commissioners on Grievances and Discipline of the Ohio Supreme Court ("Board") and is responsible for conducting a preliminary review of all grievances alleging violations of Canon VII of the Code of Judicial Conduct. If Marshall determines: (1) the grievance is

facially valid, (2) the Board has jurisdiction over the grievance, and (3) there is probable cause that a violation of Canon VII has occurred, then Marshall prepares a complaint and disciplinary sanction, an order of contempt of court, fines, and/or assessments of costs.[1]

Petitioners Thomas J. Moyer, Andrew Douglas, Alice Robie Resnick, Francis E. Sweeney, Paul E. Pfeifer, Deborah L. Cook and Evelyn L. Stratton are justices of the Ohio Supreme Court. The Supreme Court enacted, and its agencies enforce, Canon VII of the Code of Judicial Conduct. The Supreme Court itself may enforce Canon VII regarding violations committed in its presence.

In 1992, the Board created a subcommittee, chaired by Judge Harry White of Belmont County, to conduct a comprehensive review of the Code of Judicial Conduct. Among other things, the White Committee reviewed Canon VII of the Code of Judicial Conduct relating to judicial campaign conduct and campaign finance. In 1993, the Ohio State Bar Association ("OSBA") established an Ad Hoc Committee to Review Supreme Court Campaign Finances. In September, 1993, the White and OSBA Committees delivered their reports to the Supreme Court.

In September, 1993, Chief Justice Moyer announced that the White and OSBA Committee Reports would be submitted

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1. Petitioner Robin G. Weaver ("Weaver") is the current Chair of the Board. If Marshall has a conflict of interest or is unavailable, Marshall is required to forward the grievance relating to violations of Canon VII to Weaver who shall conduct the preliminary review. Petitioner David T. Evans ("Evans") is the current Vice Chair of the Board. If Marshall and Weaver have a conflict of interest or are unavailable, Weaver is required to forward the grievance relating to a violation of Canon VII to Evans who shall conduct the preliminary review.

to a special committee of the Supreme Court chaired by Judge Richard McQuade and given a comprehensive review. The McQuade Committee was established by Chief Justice Moyer in May, 1994, and charged to conduct a top-to-bottom review of Ohio's judicial election system.

In January, 1995, the McQuade Committee issued its Report to the Ohio Supreme Court. The Committee did *not* recommend any campaign spending limits. Indeed, the Committee expressly voiced *its opposition* to any judicial campaign *spending* limits:

> Some citizens frequently cite "just put a lid on it" as the solution to the problem of money in campaigns. Although a cap on spending might seem to be the simplest approach to reducing the large amount of money spent on campaigns, mandatory expenditure limits in non-judicial races have been determined to be unconstitutional. In addition, *spending limits can provide an undue advantage to incumbents and candidates with well-known names.*

McQuade Report at p. 7 (emphasis added).

On April 10, 1995, the Supreme Court enacted certain changes to the Code of Judicial Conduct. Effective on July 1, 1995, Canon VII of the Ohio Code of Judicial Conduct ("Canon VII") was amended to limit campaign expenditures by candidates for the judge of a court of common pleas to $75,000 of which $18,750 could be used by the candidate in a primary election. In addition, Canon VII was amended to add a provision prohibiting a judicial candidate from spending money which had been contributed to promote a candidate's non-judicial campaign.

On February 5, 1996, Respondent Suster brought suit in the United States District Court for the Northern District of Ohio in a case styled *Suster v. Board of Commissioners on Grievances and Discipline of the Ohio Supreme Court, et al.*, Case No. 1:96CV-0235, challenging the constitutionality of the primary campaign spending limits for common pleas candidates contained in Canon VII. Thereafter, the Ohio Supreme Court decided to amend Canon VII to remove limits on campaign spending for primary elections, but to leave intact that portion of the Canon limiting overall spending for a judicial campaign. The Supreme Court so advised the litigants and the Court on or about February 15, 1996. On February 20, 1996 the United States District Court for the Northern District of Ohio, without hearing evidence or argument and without making conclusions of law, entered a Final Consent Decree permanently enjoining the Defendants from enforcing the primary campaign spending limits. Thereafter, the Ohio Supreme Court amended Canon VII to remove the primary campaign spending limits for all judicial candidates

Prior to the March 19, 1996, primary election, Suster's judicial campaign committee spent $72,710.01 to communicate Suster's qualifications, experience and other information to the voters of Cuyahoga County. Suster was the victor in the March 19, 1996 primary election and for a period of time faced a challenge in the November, 1996 general election until early September 1996 when his challenger withdrew

Suster wanted to spend more than $75,000 before the general election scheduled for November 5, 1996 to effectively communicate his qualifications and aspirations for serving the people of Cuyahoga County as a common pleas court judge because:

(a) he believes he does not have name recognition as a judicial candidate among the voters of Cuyahoga County;

(b) his Committee having nearly reached the $75,000 general election spending limit, was restricted to the *de minimis* dissemination of information to the electorate in Cuyahoga County; and

(c) he believes the general spending limit provides for an insufficient amount of funds to allow him to disseminate his message to the more than 850,000 registered voters in Cuyahoga County.

Suster was prepared to spend in excess of $75,000 on his judicial campaign.

REASONS FOR DENYING THE WRIT

Ohio citizens deserve the opportunity to hear whatever quantity of speech is desired by a particular candidate in their effort to inform the electorate. It is only through a campaign of free speech, unrestricted in quantity, that a voter may truly vote thoughtfully, intelligently, and with confidence for an effective judiciary. Restrictions which suppress the *quantity* of speech a judicial candidate can disseminate will only serve to reinforce the public's misperception of the Ohio judiciary.

Restrictions on the quantity of speech made by judicial candidates should be analyzed in the same manner as restrictions on the quantity of speech for candidates to other offices. Whether a person is running for judge or dogcatcher, the Constitution protects the *quantity* of *all* political speech. It is

under this analysis that the District Court correctly determined the expenditure limits of Canon VII(C)(6)(d) should be enjoined.

Buckley v. Valeo, 424 U.S. 1 (1976), clearly addresses Canon VII's campaign spending limitations. Under *Buckley*, campaign expenditure limits contained in the Federal Election Campaign Act were found to "necessarily reduce the quantity of expression by restricting the number of issues discussed, the depth of their exploration, and the size of the audience reached." *Buckley*, 424 U.S. at 19. Despite Petitioners' suggestions that Buckley does not apply to judicial campaign expenditures, they make no coherent, or supported, arguments that *Buckley* should not apply to the *quantity* of protected political speech uttered by judicial candidates. The District Court applied the correct standard of review, the same standard of review applied in *Buckley* as well as other decisions, in determining the constitutionality of Canon VII(C)(6) and (8). Simply stated, an infringement upon free speech must be narrowly tailored to serve a compelling interest. *Buckley*, 424 U.S at 45. The infringement caused by Ohio's Canon VII(C)(6) and (8) are not narrowly tailored.

I.

THE SIXTH CIRCUIT CORRECTLY REVIEWED THE LAW AS IT EXISTED AT THE TIME THE LAWSUIT WAS FILED AND DECIDED.

Contrary to Petitioners' arguments, the Sixth Circuit Court of Appeals did *not* err when it properly reviewed the questions before it — did the District Court abuse its discretion when it enjoined Petitioners from enforcing former Canon VII(C)(6)(a) which was the law when the suit was filed and decided.

The Sixth Circuit Court of Appeals properly held that the question of whether the district court abused its discretion in granting the preliminary injunction was still ripe. The Court found that if it were to determine that the district court erred in issuing the preliminary injunction, then the legal interests and positions of Respondents would be compromised as they have received no assurances that grievances will not be pursued and penalties not imposed under the old Canon. *See Edgar v. Mite Corp.*, 457 U.S. 624, 647-54, 102 S. Ct. 2629, 2643-47, 73 L. Ed. 2d 269 (1982) (Stevens, J., concurring); *McPherson v. Michigan High School Athletic Ass'n, Inc.*, 119 F.3d 453, 458 (6th Cir. 1997) ("The test for mootness 'is whether the relief sought would, if granted, make a difference to the legal interest of the parties.' ") (Citation omitted). Hence, the appellate court's review of the district court's grant and denial of preliminary injunction could *not* be said to be moot.

The Circuit Court properly concluded that as to the substantive challenge to the constitutional merits of Canon VII(C)(6) and Canon VII(C)(8), it could no longer consider the former version of Canon VII(C)(6) as it has recently been amended citing *Diffenderfer v. Central Baptist Church*, 404 U.S. 412, 414, 92 S. Ct. 574, 575, 30 L. Ed. 2d 567 (1972). However, the appellate court held that because such expenditure limitations for judicial candidates continues to remain in the revised Canon, there was still a case and controversy between the parties the Circuit Court cited this Court, when it found where a new Canon "is sufficiently similar to the [amended Canon] it is permissible to say that the challenged conduct continues," the controversy is not mooted by the change, and a federal court continues to have jurisdiction. *Northeastern Fla. Chapter v. City of Jacksonville*, 508 U.S. 656, 662 n.3, 113 S. Ct. 2297, 2301 n.3, 124 L. Ed. 2d 586 (1993). Hence, the Sixth Circuit Court of Appeals correctly concluded there was jurisdiction over the revised Canon VII(C)(6), as well as Canon VII(C)(8).

The Sixth Circuit went on to hold that the fact that the Canon has been revised is of no import to its decision to refrain from reviewing the amended Canon because, it found where a change in law does not extinguish the controversy, the preferred procedure is for the court of appeals to remand the case to the district court for reconsideration of the case under the amended law. *See Concerned Citizens of Vicksburg v. Sills*, 567 F.2d 646, 650 (5th Cir. 1978); *Korn v. Franchard Corp.*, 456 F.2d 1206, 1208 (2d Cir. 1972).

The Appellate Court properly concluded that as the district court never had the opportunity to fully address the merits of Respondents' challenge prior to the amendment during the appeal, nor did it have the opportunity to fully consider the constitutionality of the amended Canon, it would refrain from considering the merits of amended Canon VII(C)(6); limit its view to the consideration of the appropriateness of preliminary injunction under the old Canon VII(C)(6) and Canon VII(C)(8); and remand amended Canon VII(C)(6) to the District Court for a full review.

This decision was well grounded in law and the record. Accordingly, this Honorable Court should decline to revisit the issue at this point in the federal judicial process.

II.

THE COURT OF APPEALS AND DISTRICT COURT CORRECTLY HELD THAT THE OHIO SUPREME COURT'S JUDICIAL CAMPAIGN SPENDING LIMITS LACKED THE REQUISITE COMPELLING INTEREST FOR AN INFRINGEMENT ON FIRST AMENDMENT RIGHTS.

When determining whether an act unconstitutionally burdens speech, there is a single test, a test which Petitioners cite, but also disregard:

> When considering whether a campaign finance law unconstitutionally infringes freedom of speech, this Court's task is to decide whether the provision in question actually burdens the exercise of political speech and, if it does, whether it is narrowly tailored to serve a compelling state interest.

Austin v. Michigan Chamber of Commerce, 494 U.S. 652, 657, 110 S. Ct. 1391, 1396, 108 L. Ed. 2d 652 (1990) (citing *Buckley* [*v. Valeo*], 424 U.S. 1, 96 S. Ct. 612, 46 L. Ed. 2d 659). The District Court and Sixth Circuit Court of Appeals correctly followed this test by holding that the judicial spending limits burdened political speech, do not serve a compelling state interest, and were not narrowly tailored.

A. The Judicial Campaign Spending Limits Do Not Address a Compelling State Interest.

This Court has set forth only two interests which can justify a reduction in political speech: preventing corruption or the appearance of corruption.

In *FEC v. NCPAC*, 470 U.S. 480, 496-497 (1985), this Court ruled:

> We held in Buckley and reaffirmed in Citizens Against Rent Control that *preventing corruption or the appearance of corruption are the only legitimate and compelling government interests thus far identified for restricting campaign finances.* In Buckley we struck down the FECA's limitation on individuals' independent expenditures because we found no tendency in such expenditures, uncoordinated with the candidate or his campaign, to corrupt or to give the appearance of corruption.
>
> * * *
>
> Corruption is a subversion of the political process. Elected officials are influenced to act contrary to their obligations of office by the prospect of financial gain to themselves or infusions of money into their campaigns. The hallmark of corruption is the financial quid pro quo: dollars for political favors. But here the conduct proscribed is not contributions To the candidate, but *independent expenditures in support of the candidate. . . . The Court concluded Buckley that there was a fundamental constitutional difference between money spent to advertise one's views independently of the candidate's campaign and money contributed to the candidate to be spent on his campaign.*

(Emphasis added.) This Court has yet to identify any other compelling state interests permitting core political speech to be burdened. Petitioners do not cite *any* Supreme Court or Sixth Circuit cases which expand the list of compelling state interests that jusitfy the regulation of political speech.

None of the state interests indentified in Petitioners' Writ are associated with addressing corruption or the appearance of corruption.

First, Petitioners assert that campaign speech by judicial candidates is at odds with preserving judicial independence and ensuring public trust and confidence in the courts. This has nothing to do with preventing corruption or the appearance of corruption. Petitioners do not assert that there is a correlation between public confidence in the judicial system and allowing a judicial candidate the opportunity simply to express his or her qualifications, background and expertise for the bench. Indeed, it should have just the opposite effect as citizens elect to the bench people they know are qualified.

This Court can, should, and does encourage respect for the judiciary and judicial system, but it may not limit speech to achieve such goals. It is *not* a proper governmental function to instill confidence in public institutions through the regulation of speech. This Court's flag burning cases make this precise point. In *Texas v. Johnson*, 491 U.S. 397, 409 (1989), this Court protected Johnson's flag burning as an "expression of dissatisfaction with the policies of the Federal Government." In *Eichman v. United States*, 496 U.S. 310, 318 (1990), this Court further pointed out that government may, by persuasion and example, encourage respect for national symbols and unity, but it may not proscribe speech to achieve those goals.

Second, Petitioners assert a purported "compelling" interest in restricting judicial primary campaign spending because it undermines the public perception about fairness and impartiality of judges. Petitioners fail to explain how a judge who spends one dollar on his campaign is more fair or impartial than one who spends ten thousand dollars. Following through with this illogical argument, lower court judges, saddled with lower

spending limits than their appellate brethren, must be viewed by the public as much more fair to a litigant than an Ohio Supreme Court Justice.

Finally, the Petitioners contend that a "compelling" interest in need of protection is that the judiciary appear to be "neutral and not beholden to contributors". Petitioners cite a popular opinion poll which states that a majority of Ohioans believe campaign contributions influence judicial decisions and that *spending* limits would solve the problem. This argument is contrary to Ohio history and the Ohio Constitution. Through their Constitution, the citizens of Ohio have decided that they *want* politics in the selection of their judiciary. This is why judges in Ohio, at all state court levels, are *elected*. This is why judges in Ohio are elected in party primaries. Politics entails campaigning and money toward that effort. To suggest that the wisdom of the people of the State of Ohio, speaking through their Constitution, should be thrown out the window based upon a voodoo-like popular opinion poll is downright scary. It is even more disturbing that such an opinion is being advocated by these Petitioners.

It cannot seriously be suggested that the State has shown a compelling interest for judicial campaign spending limits. Indeed, spending limits are directly contrary to a compelling state interest in fostering our "propound national commitment to the principle that debate on public issues should be uninhibited, robust, and wide open." *New York Times Company v. Sullivan*, 376 U.S. 254, 270 (1964). One of those issues is electing qualified persons to the bench. An informed and knowledgeable electorate is a prerequisite to such elections.

B. Judicial Campaign Spending Limits Burden Political Speech and Do Not Advance Impartiality and/or the Appearance of Impartiality.

The District Court held that judges advocating their election to the bench are engaging in political, not judicial, speech. Petitioners would have this Court believe that speech advocating the election of judges is not "political speech" and therefore is not entitled to the same First Amendment protections as speech advocating election of candidates to the legislature. According to Petitioners, "political speech" is "viewpoint related speech necessary for a voter to make informed decisions for election to political office."

Petitioners narrow definition of political speech is unsupported, in fact or by law. Political speech "relates to the advocacy of the election or defeat of candidates," *Buckley*, 424 U.S. at 47. *In accord*, *Geary v. Renne*, 911 F.2d 280 (9th Cir. 1990) (Rhinehart, J. concurring), *ACLU v. Florida Bar*, 744 F. Supp. 1094, 1097 (N.D. Fla. 1990) ("Indeed, when a state decides that its trial judges are to be popularly elected, as Florida has done, it must recognize the candidate's right to make campaign speeches and the concomitant right of the public to be informed about the judicial candidates.")

Buckley's holding is clear, concise, and firm: campaign spending limits are an unconstitutional restriction on the First Amendment protected right to free speech. This Court went on in *Buckley* to explain the effects of campaign spending limits on the First Amendment's guarantee of freedom of speech:

> A restriction on the amount of money a person or group can spend on political communication during a campaign necessarily reduces the quantity of expression by restricting the number of issues

> discussed, the depth of their exploration, and the size of the audience reached. This is because virtually every means of communicating ideas in today's mass society requires the expenditure of money. The distribution of the humblest handbill or leaflet entails printing, paper, and circulation costs. Speeches and rallies generally dependent on television, radio, and other mass media for news and information has made these expensive modes of communication indispensable instruments of effective political speech. *Buckley*, 424 U.S. at 19.

Buckley's holding has been upheld time and time again.[2]

Petitioners are thus compelled to attempt with trying to distinguish *Buckley* from the facts presented herein. They cannot. Petitioners fail to cite this Court to *one single case* in which *Buckley*'s prohibition on campaign spending limits has been questioned or found inapplicable to other types of elections. As put by the Eighth Circuit Court of Appeals in *Shrink Missouri Government PAC v. Maupin*, 71 F.3d 1422, 1426 (1995), when reviewing a Missouri statute that limited campaign spending in that state's elections, "This Court is not

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2. *FEC v. National Conservative PAC*, 470 U.S. 480, 491, 105 S. Ct. 1459, 84 L. Ed. 2d 455 (1985) (limitations on campaign expenditures unconstitutional); *Shrink Missouri Government PAC v. Maupin*, 71 F.3d 1422, 1426 (8th Cir. 1995) (Court not at liberty to disregard *Buckley*; campaign expenditure limits unconstitutional); *Labor's Educational and Political Club v. Danforth*, 561 S.W. 2d 339, 346 (Mo. 1977); ("we must remember that limits on campaign expenditures are unconstitutional." *Buckley, supra*); *Friends of Governor Tom Kean v. New Jersey Election Law Enforcement Commission*, 203 N.J. Super 523, 497 A.2d 555, 561 (1985) (*Buckley* dispositive: independent expenditure limits are unconstitutional); *City of Cincinnati v. Kruse*, U.S. Supreme Court Case No. 98-454.

at liberty to disregard the explicit holdings of *Buckley*." Petitioners have proffered no valid reason to disregard this Court's rule of law in *Buckley*.

Petitioners suggest that *Buckley* was focused on political, not judicial, speech. This case is about regulating the *quantity* of political speech, *not* the content of such speech. It is *not* a case, as Petitioners wish to portray it, about the *content* of political speech, such as that challenged in *Berger v. Supreme Court of Ohio*, 598 F. Supp. 69 (S.D. Ohio 1984), *aff'd.*, 861 F.2d 719 (6th Cir. 1988), *cert. denied*, 490 U.S. 1108 (1989), or *Deters v. Judicial Retirement and Removal Commission*, 873 S.W. 2d 200 (Ky. 1984), *cert. denied*, 115 S. Ct. 194 (1994), or *Stretton v. Disciplinary Board*, 944 F.2d 137 (3d Cir. 1991). The speech at issue in this case is not those observations and discussions that a judge might make on the bench or before an audience regarding a particular case or issue confronting a judge. *It simply involves speech advocating a candidate's qualifications and election for judge*. A judicial candidate, like any other political candidate, has the unfettered right to disseminate his or her qualifications to the electorate.

Buckley cannot be distinguished from this case on the grounds that the goals set forth in *Buckley* are inimical to judicial elections. *Buckley* held that the First Amendment is designed

> to secure the widest possible dissemination of information from diverse and antagonistic sources and to assure unfettered interchange of ideas for the bringing about of political and social changes desired by the people.

Buckley, 424 U.S. at 49. While certainly judicial candidates are bound by Canon VII not to comment on certain justiciable

matters, that is not the issue here. Surely, the goals of *Buckley*, to secure the widest possible "dissemination of information," are content neutral. *Buckley*'s goals are served by eliminating spending limits which suppress the dissemination of a judicial candidate's background, qualifications and expertise for service on the bench.

Finally, Appellants attempt to distinguish *Buckley* because, in *Buckley*, a violation of the election law at issue in that case led to a criminal penalty. This is another distinction without a difference. While there is no criminal penalty for violating Canon VII, there are sanctions — disciplinary sanctions, contempt, fines and assessments of costs (see Supreme Court Rules for Government of the Judiciary Rule II, § 5(E)).

III.

THE JUDICIAL CAMPAIGN SPENDING LIMITS ARE *NOT* NARROWLY TAILORED.

This Court, in *Buckley*, clearly explained why campaign spending limits are never narrowly tailored to serve a compelling government interest: Campaign spending limits "impose direct *quantity* restrictions on political communication," and "restrict the extent of the reasonable use of virtually every means of communicating information." *Buckley*, 424 U.S. at 18 (emphasis added).

This sentiment is reiterated by the Eighth Circuit Court of Appeals in *Shrink Missouri Government PAC v. Maupin*, 71 F.3d 1422, 1426 (1995), *cert. denied*, 116 S. Ct. 2579 (1996):

> Indeed we are hard pressed to discern how the interest of good government could possibly be served by campaign expenditure laws that

> necessarily have the effect of limiting the *quantity* of political speech in which candidates for public office are allowed to engage. *See Buckley*, 424 U.S. at 55-57, 96 S.Ct. at 652-53 (emphasis added).

Petitioners' conclusions that the restrictions are narrowly tailored to serve a compelling interest do not even pass the requirement that there be a nexus between the restriction and the interest. In short, Canon VII(C)(6) does not bear a sufficient relationship to the problem sought to be cured.

> In light of the Canon's restrictions on political expression and association protected under the First Amendment, *Buckley*, 424 U.S. at 14, the court Cannot cavalierly accept without proof that the means being used achieve legitimate ends being sought. Other courts have held that such a failure to establish a nexus is grounds for finding the restriction unconstitutional.

Zeller v. The Florida Bar, 909 F. Supp. 1518, 1526 (N.D. Fla. 1995).

IV.

THE SIXTH CIRCUIT CORRECTLY INTERPRETED *BUCKLEY*, AND THE *BUCKLEY* STANDARD IS THE PROPER STANDARD TO APPLY TO JUDICIAL ELECTIONS.

Having all but conceded defeat, Petitioners purpose that if the standard in *Buckley* was correctly applied, then perhaps this Court's standard in *Buckley* should be changed. Unfortunately, for Petitioners, the Sixth Circuit Court of Appeals properly applied the *Buckley* standard, and more importantly, *Buckley* is the right standard.

The Sixth Circuit Court of Appeals poignantly held:

> Given the fundamental nature of the right involved, this Court is of the opinion that the language of *Buckley* and its progeny have necessarily determined, irrespective of the *kind* of position sought, that any spending restriction in any *electoral* campaign process is an infringement on a candidate's First Amendment rights, and is subject to "exacting scrutiny." *Buckley*, 424 U.S. at 44-45. The guarantees of the First Amendment are not shaped and reshaped simply because a litigant wishes to distinguish one type of election from another. Neither the First Amendment, nor *Buckley* can be read so narrowly.

Sixth Circuit Court of Appeals Opinion, pages 13-14, Appendix A-13 (emphasis original).

CONCLUSION

Petitioners want this Court to bless its deal with the devil, which is the result of a reaction to popular perception, *not* sound constitutional principles. In this era of disillusionment with government and politicians, restrictions on campaign finance are politically popular. Following the "mob," the one group the judiciary is not supposed to cater to, Petitioners enacted judicial campaign spending limits, regardless of the fact that such limits are entirely unrelated to reducing corruption or the appearance of corruption in a state where the State Constitution mandates the election of judges. Under the First Amendment, the government cannot silence political speech, especially the *quantity* of such speech, in the form of campaign spending limits for judges or any other candidates. Simply put, the First Amendment applies to judges and judicial candidates.

Respondents respectfully request the opportunity to litigate the merits of the Amended Canon VII(C)(6)(a); to litigate Canon VII(C)(8); and, to litigate the state substantive due process claim in the District Court below.

WHEREFORE, Respondents Suster and Cleary respectfully request that this Court deny the Petition for Writ of Certiorari.

Respectfully submitted,

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